

Instructor: Date:

Learner: Regional Branch:

Program: Center:

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Let's Start!

Coming to an Agreement in an IT Negotiation



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.

Participate in the improvement of IT contracts, establishing technical clauses that respond to the needs of the negotiating agents, based on current laws on contracting.

Can Do Statements:

- I can identify the areas of interest for both parties in an IT contract.
- I can list the key areas to most software contracts.
- I can discuss basic recommendations to consider to sign an IT contract.

Ask your partner:

- Do you think it is possible to come to an agreement to solve discrepancies? Why?
- What strategies do you think you can use to come to an agreement?





Let's Explore!

General Recommendations for IT Negotiation Contracts



Instructions: Read the text below.

Choosing an ideal IT contract should not be brought about too soon. It is necessary to emphasize on the importance of selecting a contract in which the terms are well defined and appropriate for a project.

A first recommendation when negotiating IT contractual terms is to retain counsel specialized in IT contract law, which is not inexpensive but it can be worth the cost in the case of contract disputes in the future. Additionally, a second recommendation is not to force working relationships. If agreement or a primary goal is not achieved, it might be a hint of what the relationship is going to be like.

At the outset of an IT negotiation, some contract deliverables of interest for both parties in an IT contract should be taken into account. The contract must ensure that the terms and conditions that are included in it are balanced. They also have to make sure that the definition of the course of action for both parties, and an agreeable and reliable working relationship are achieved after the negotiation.

Now that the groundwork has been discussed, let's list the most common key areas to nearly all IT software contracts:

Software, which summarizes the actual aspects of the IT product that is procured; hardware, which includes all the hardware specifications and requirements; professional services, which mentions the expected tasks and services of IT consultants; training, which includes characteristics and conditions related to all software training aspects; implementation scope, which relates to the project charter, objectives schedule and detailed assumptions; and general terms and conditions, which gives an all-inclusive summary of the main aspects in the contract.

This list is not intended to be complete, but it does mention some aspects that are not always taken into account when establishing contractual terms.





Let's Practice!

Sarah gives some recommendations when signing an IT contract.

Instructions: Select the correct answer.

1. Signing an IT contract is not considered the most important part. There are some areas of interest for both parties. One of this is related to _____ (Hint: Clue: necessities arrangement)
 - a. the common needs definition
 - b. a recommendation
 - c. the agreement
 - d. professionals
2. The contract is not _____ if one of the parties does not have clear instructions of use. (Hint: Simple Past Form)
 - a. negotiation
 - b. negotiating
 - c. negotiate
 - d. negotiated
3. The contract is not accepted if the supplier hide _____ information. ((Hint: Important)
 - a. software
 - b. designed
 - c. relevant
 - d. insignificant
4. _____ regulations is not accepted in this type of contract. Make sure you include your own terms but never try to refuse or ignore the other part's points of view. (Hint: Gerund)
 - a. Imposing
 - b. Imposition
 - c. Procedures
 - d. Implemented
5. IT contract is not _____ in a couple of minutes. Both parties need to get the management and legal procedure it deserves. (Hint: Simple past form)
 - a. signing
 - b. signature
 - c. signed
 - d. sign



Let's Practice!

Here we have some statements which reflect bad procedures in IT contract.

Instructions: Read the paragraph. Underline all the incorrect words.

The recommendations to sign an IT contract aren't stating in any section of this one. However, you should read the agreement in advance in order to list your doubts. Additionally, general terms and conditions can't be ignoring when sign an IT contract. For that reason, it is recommend you to read them carefully. When the goals is omitted by one entity, both parts need to establish the objectives schedule and detailed assumptions.



Extension Activity

Let's talk hire an IT service!

Instructions: Complete the following steps. Fill in the Self-Assessment.

- In the internet, find models of service contracts.
- Create a situation where you need to hire IT services.
- Include some of the key areas for a software contract.
- Describe exactly the purpose and objective of the contract.
- Use simple present passive in negative forms.
- Show your contract to the class.

Self-Assessment

Yes

No

- I create a model of an IT contract. ☐ ☐
- I include important key elements in a contract. ☐ ☐
- I describe the purpose of the contract using simple present passive. ☐ ☐
- I share information with the class. ☐ ☐



Target Words

- **counsel** (noun): a lawyer who represents a party.
e.g. A first recommendation when negotiating IT contractual terms is to retain counsel specialized in IT contract law.
- **hint** (noun): a suggestion, a clue.
e.g. If agreement or a primary goal is not achieved, it might be a hint of what the relationship is going to be like.
- **at the outset** (adverb): at the beginning.
e.g. At the outset of an IT negotiation, some contract deliverables of interest for both parties in an IT contract should be taken into account.
- **nearly** (adverb): almost.
e.g. Let's list the most common key areas to nearly all IT software contracts.
- **project charter** (noun): a document that states the roles and responsibilities of the parts involved.
e.g. Implementation scope, which relates to the project charter, objectives schedule and detailed assumptions.
- **assumption** (noun): a supposition; something that is believed.
e.g. Implementation scope, which relates to the project charter, objectives schedule and detailed assumptions.



Learning Points

Simple Present Passive in Negative Statements

When we want to give importance to the object of a sentence or when the subject is not important or unknown, the **passive voice** is used.

The **passive voice** is used in the *simple present* to talk about situations that occur on a regular basis and its doer is unknown or is not important.

To make the simple present passive in **negative statements**, the **to be** verb is used in the *present simple* as the auxiliary, followed by **not**, and the main verb in its *past participle form*:

Object	Verb To Be and Not	Main verb (past participle)	Complement
The insurance terms	are not	provided	in the contract.

Examples

- *If agreement or a primary goal is not achieved, it might be a hint of what the relationship is going to be like.*
- *This list is not intended to be complete, but it does mention some aspects that are not always taken into account when establishing contractual terms.*

Key Areas of Software Contracts

It is recommended that the following items be included in a contract negotiation plan:

Software:

This item should include information about the functionality, licensing structure, the payments schedule, escrow of source code, Guarantee of software performance, maintenance, and support.

Hardware:

The hardware specifications should be so detailed so that it is possible for you to place an order with your hardware vendor.

Professional Services:

This section should include information of the role and responsibilities of the professional services staff. The tasks and deliverables should also be stated.

Training:

This item should state the information related to the support you are supposed to receive in the implementation stage.

Implementation Scope:

The background for the project, objectives, detailed assumptions, and a detailed project schedule are included in this important section.

